Definitions.

89. (1) In this Scheme, unless the context otherwise requires,—

(*a*) "appellant" means—
- (*i*) a person in whose case an appeal or a writ petition or special leave petition has been filed either by him or by the income-tax authority or by both, before an appellate forum and such appeal or petition is pending as on the specified date; or
- (*ii*) a person who has filed his objections before the Dispute Resolution Panel under section 144C of the Income-tax Act and the Dispute Resolution Panel has not issued any direction on or before the specified date; or
- (*iii*) a person in whose case the Dispute Resolution Panel has issued direction under sub-section (5) of section 144C of the Income-tax Act and the Assessing Officer has not completed the assessment under sub-section (13) of that section on or before the specified date; or
- (*iv*) a person who has filed an application for revision under section 264 of the Income-tax Act and such application is pending as on the specified date;

(*b*) "appellate forum" means the Supreme Court or the High Court or the Income-tax Appellate Tribunal or the Commissioner (Appeals) or Joint Commissioner (Appeals), as the case may be;

(*c*) "declarant" means a person who files declaration under section 91;

(*d*) "declaration" means the declaration filed under section 91;

(*e*) "designated authority" means an officer not below the rank of a Commissioner of Income-tax notified by the Principal Chief Commissioner for the purposes of this Scheme;

(*f*) "disputed fee" means the fee determined under the provisions of the Income-tax Act in respect of which appeal has been filed by the appellant;

(*g*) "disputed income" in relation to an assessment year, means the whole or so much of the total income as is relatable to the disputed tax;

(*h*) "disputed interest" means the interest determined in any case under the provisions of the Income-tax Act, where—
- (*i*) such interest is not charged or chargeable on disputed tax;
- (*ii*) an appeal has been filed by the appellant in respect of such interest;

(*i*) "disputed penalty" means the penalty determined in any case under the provisions of the Income-tax Act, where—
- (*i*) such penalty is not levied or leviable in respect of disputed income or disputed tax, as the case may be;
- (*ii*) an appeal has been filed by the appellant in respect of such penalty;

(*j*) "disputed tax", in relation to an assessment year or financial year, as the case may be, means the income-tax including surcharge and cess (hereafter in this Chapter referred to as the amount of tax) payable by the appellant under the provisions of the Income-tax Act, as computed hereunder:—
- (A) in a case where any appeal, writ petition or special leave petition is pending before the appellate forum as on the specified date, the amount of tax that is payable by the appellant if such appeal or writ petition or special leave petition was to be decided against him;
- (B) in a case where objection filed by the appellant is pending before the Dispute Resolution Panel under section 144C of the Income-tax Act, as on the specified date, the amount of tax payable by the appellant if the Dispute Resolution Panel was to confirm the variation proposed in the draft order;
- (C) in a case where Dispute Resolution Panel has issued any direction under sub-section (5) of section 144C of the Income-tax Act, and the Assessing Officer has not completed the assessment under sub-section (13) of that section on or before the specified date, the amount of tax payable by the appellant as per the assessment order to be passed by the Assessing Officer in pursuance of the said assessment under sub-section (13) thereof;
- (D) in a case where an application for revision under section 264 of the Income-tax Act, is pending as on the specified date, the amount of tax payable by the appellant if such application for revision was not to be accepted:

  Provided that in a case where the dispute in relation to an assessment year relates to reduction of tax credit under section 115JAA or section 115JD of the Income-tax Act, or any loss or depreciation computed thereunder, the appellant shall have an option either to include the amount of tax related to such tax credit or loss or depreciation in the amount of disputed tax, or to carry forward the reduced tax credit or loss or depreciation, in such manner as may be prescribed.;

(*k*) "Income-tax Act" means the Income-tax Act, 1961 (43 of 1961);

(*l*) "last date" means such date as may be notified by the Central Government in the Official Gazette;

(*m*) "prescribed" means prescribed by rules made under this Act;

(*n*) "specified date" means the 22nd day of July, 2024;

(*o*) "tax arrear" means—
- (*i*) the aggregate amount of disputed tax, interest chargeable or charged on such disputed tax, and penalty leviable or levied on such disputed tax; or
- (*ii*) disputed interest; or
- (*iii*) disputed penalty; or
- (*iv*) disputed fee.

(2) The words and expressions used herein and not defined but defined in the Income-tax Act shall have the meanings respectively assigned to them in that Act.